

Mr. Deepak Verma & Anr. vs Apt Infrastructure Pvt. Ltd. & Anr. on 17 October, 2017

Daily Order

IN THE DELHI STATE CONSUMER DISPUTES REDRESSAL, COMMISSION : DELHI

(Constituted under Section 9 of the Consumer Protection Act, 1986)

Date of Arguments :17.10.2017

Date of Decision :23.10.2017

Complaint No.1597/2017

IN THE MATTER OF:

1. Mr. Deepak Verma,

S/o. Shri Harbans Lal Verma,

H.No.182, Sector-46,

Faridabad-121001, Haryana.

2. Mrs Santosh Verma,

W/o. Shri Harbans Lal Verma,

H.No.182, Sector-46,

Faridabad-121001, Haryana.

Versus

1. APT Infrastructure Pvt. Ltd.,

(Through its Directors/ Partners)

Registered Office B-7/45,

Safdarjung Enclave Extension,

New Delhi-110029.

Corporate Address:

423, 424 and 426, 4th Floor,

Tower-B, Spazedge,

Sohna Road, Sector-47,

Gurgaon, Haryana-122002.

....Opposi

2. Piedmont Development Company Pvt. Ltd.,

(Through its Directors/ Partners),

Office Address :

423, 424 and 426, 4th Floor,

Tower-B, Spazedge,

Sohna Road, Sector-47,

Gurgaon, Haryana-122002.

....Opposi

3. Not Just Flats

(Through its Director/ Partners),

A Ground of Ribak Infra Pvt. Ltd.,

A-222, 2nd Floor, Tower A,

Spazedge, Sector-47, Sohna Road, Gurgaon.

....Opposite Party No.3

HON'BLE SH. O.P.GUPTA, MEMBER(JUDICIAL)

HON'BLE SH. ANIL SRIVASTAVA, MEMBER

1. Whether reporters of local newspaper be allowed to see the judgment? Yes/No
2. To be referred to the reporter or not? Yes/No Present:
Complainant in persons.

PER : SHRI ANIL SRIVASTAVA, MEMBER Short question for adjudication in this complaint is whether the complainant, namely, Shri Deepak Verma & Smt. Santosh Verma, resident of Faridabad, are entitled to the interest, as claimed, for the delay in handing over the possession of the flat bearing no.T-10/0402, Takshila, Height, Sector-37 C, Gurgaon, Haryana in the project of the opposite party, namely, APT Infrastructure Pvt. Ltd., particularly when the possession of the flat has already been taken over and even the conveyance deed to this effect has been executed.

Facts of the case, necessary for the disposal of the complaint, are these.

The complainants based on the advertisements made by the opposite parties with respect for their project at Takshila Height, at Sector-37C, Gurgaon, Haryana booked a flat by paying the booking amount of Rs.9,14,294/- on 28.08.2013 and consequently the OP allotted him a flat

bearing number T-10/0402, Takshila Height, Sector-37 C, Gurgaon. Total sale consideration was Rs.87,46,419/- and the size of the flat was 1537.11 sq. ft. The understanding was that the possession of the flat would be handed over within 42 months taking 01.12.2010 the date on which the construction in the project commenced. Further payment was made as per the demand of the OP raised from time to time.

However since there was delay in handing over the possession or for executing the conveyance deed, the complainants sought for the interest and compensation which request the OP did not accede, leading to the filing of this case before this Commission under Section 17 of the Consumer Protection Act 1986, praying for the relief as under:-

- a) Pass an order in favour of the complainant and against the respondents directing the respondents to pay an interest compensation on delay in call for possession of the flat/ unit under discussion beyond 42 months from the start of the project (taking 1st Dec. 2010 as the start of the project) till 30th June, 2016 @18% p.a. amounting to a sum of Rs.10,64,100/-.
- b) Pass an order for further interest @18% p.a. on total amount of flat paid i.e. Rs.93,83,500/- approx. and the amount in point a) above, for a period from 30th Jun 2016 to the date of payment amounting to Rs.22,37,841/- till the expected date of payment (taken tentatively as 1st September, 2017 and subject to actual payment) of such amount to the complainants.
- c) Pass an order for the loss of rent @12000/- month from 1st July, 2014 till offer for possession due to delay in completion and call for possession of the society / unit (30th Jun 2016) along with interest @18% till the expected date of payment (tentatively taken as 1st Sept 2017 and subject to actual payment) amounting to Rs.3,49,690/-.
- d) Pass an order for the loss of rent @12000/- month from 1st July 2016 till physical possession (5th Nov 2016) of the unit delayed due to the lack / deficiency in services from the Builder along with interest @18% p.a. till the expected date of the payment (tentatively taken as 1st Sept 2017 and subject to actual payment) to Rs.57,227/-.
- e) Interest on pre-mature registry charges Rs.5,00,000/- approx. @18% p.a. from 10th Sep. 2016 (as per best memory) till two months from actual possession 31st Dec 2016 amounting to Rs.26,050/-.
- f) Maintenance charges for 5 months approx till physical possession of the unit along with interest @18% till the expected date of the payment (tentatively taken as 1st Sep 2017 and subject to actual payment) amounting to Rs.24,290/-.

- g) Compensation for substandard wooden laminated flooring in the name of 'wooden laminated flooring' @Rs.350/- sq. ft for 10' X 12' room size and 11' X 17' 9" room size along with Rs.20000 for labour charges of fixing such down tiles amounting to Rs.1,30,340/-.
- h) Pass an order directing the respondents to pay a sum of Rs.5,00,000/- for causing extensive physical and mental harassment and agony cause to the complainants and such long period and for the hardships to go for litigation. Mental agony was allegedly caused by the misbehavior by the respondent's person also despite non completion of the unit.
- i) Costs of litigation and cost of the lawyer, in case employed by the complainants.
- j) Interest on the above compensations to the complainants @24% p.a. (based on the mutual rate of interest for loss to the parties for the same property) in place of conservative approach of 18% p.a. in above calculations, as the respondent 1 is demanding 24% p.a. of the interest for any delays by the allottees in payment under the BBA beyond 90 days (BBA clause 15 read with other clause referring the rate if interest to respondent 1).
- k) Pass such other or further orders as the Ld. Forum may deem fit in the facts and circumstances of the case.

This matter was listed before us for admission hearing on 17.10.2017 when the complainant no.1 was present in person and made his submission. We have perused the records of the case.

In the first instance we sought the clarification from the complaint whether he has taken over the physical possession of the flat bearing no.T-10/0402 to which he submitted in affirmative and further clarified that even the conveyance deed has been executed.

It is a settled position that once possession has been taken over, one is not entitled to raise a consumer dispute. The Hon'ble NCDRC in the matter of Harpal Arya vs. Housing Board, Haryana - II (2016) CPJ 36 (NC)- has held, "Once a petitioner has taken over possession with open eyes and without any pre condition, he ceases to be a consumer."

Similar view was taken by the Hon'ble NCDRC in the matter of Smita Roy Vs. Excel Construction - IV(2012) CPJ 204 (NC).

Having regard to the settled position as indicated above, we are of the considered view that the complainant having taken over possession of the flat, is no longer a consumer in which case he is estopped from raising consumer dispute.

Accordingly we dismiss the complaint in limine. No cost.

Copy of this order be sent to both the parties free of cost as statutorily required.

File be consigned to Record Room.

(ANIL SRIVASTAVA)

(O.P.GUPTA)

MEMBER

MEMBER (JUDIC